

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #16	CCRB Case #: 202206238	☐ Force	☐ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/18/2022 1:20 AM, Wednesday, 06/07/2023 11:18 AM, Wednesday, 06/28/2023 10:00 AM	Location of Incident: In front of § 87(2)(b) and 100 Church Street	18 Mo. SOL 3/18/2024	Precinct: 48		
Date/Time CV Reported Sun, 09/18/2022 1:49 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 09/18/2022 1:49 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Clairet Cordero Lantigua	23864	967018	048 PCT
2. PO Juan Acostavilla	30227	966924	048 PCT
3. PO Michael Rosario	20178	968106	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Juan Acostavilla	Abuse: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla stopped § 87(2)(b)	A . Unable to Determine
B . PO Juan Acostavilla	Abuse: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla frisked § 87(2)(b)	B . Unable to Determine
C . PO Juan Acostavilla	Abuse: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla searched § 87(2)(b)	C . Unable to Determine
D . PO Juan Acostavilla	Abuse: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla failed to explain to § 87(2)(b) the reason for a law enforcement activity.	D . Unable to Determine
E . PO Juan Acostavilla	Abuse: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla failed to provide § 87(2)(b) with a business card.	E . Unable to Determine
F . PO Juan Acostavilla	Abuse: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla seized § 87(2)(b)'s property.	F . Unable to Determine
G . PO Juan Acostavilla	Untruthful Stmt.: On June 7, 2023, at 100 Church Street in Manhattan, Police Officer Juan Acostavilla provided a misleading official statement to the CCRB.	G . Substantiated
H . PO Clairet Cordero Lantigua	Untruthful Stmt.: On June 28, 2023, at 100 Church Street in Manhattan, Police Officer Clairet Cordero Lantigua provided a misleading official statement to the CCRB.	H . Substantiated
I . PO Michael Rosario	Untruthful Stmt.: On June 28, 2023, at 100 Church Street in Manhattan, Police Officer Michael Rosario provided a misleading official statement to the CCRB.	I . Substantiated
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On September 18, 2022, § 87(2)(b) filed this complaint over the phone with the CCRB.

On September 18, 2022, at 1:20 a.m., outside of § 87(2)(b) in the Bronx, § 87(2)(b) was walking alone when PO Juan Acostavilla, PO Clariet Cordero Lantigua, and PO Michael Rosario, all of the 48th Precinct, pulled up in an unmarked vehicle. PO Acostavilla approached § 87(2)(b) frisked, and searched his pockets (**Allegations A, B, C: Abuse of Authority, unable to determine**). PO Acostavilla allegedly did not explain the purpose of his actions, took a knife from § 87(2)(b) and then left without returning the knife or providing § 87(2)(b) with a business card (**Allegations D, E, F: Abuse of Authority, unable to determine**).

On June 7, 2023, at 11:18 a.m., at 100 Church Street in Manhattan, PO Acostavilla provided a misleading official statement to the CCRB (**Allegation G: Untruthful Statement, substantiated**).

On June 28, 2023, at 10:00 a.m., at 100 Church Street in Manhattan, PO Cordero Lantigua and PO Rosario provided misleading official statements to the CCRB (**Allegations H, I: Untruthful Statement, substantiated**).

§ 87(2)(g), § 87(4-b)

No arrests or summonses resulted from this incident. The investigation obtained two building surveillance videos of the incident (**BRs 05, 06**). The investigation is not in possession of additional video.

This case was originally assigned to Supervising Investigator Rachel Adler and was reassigned to Supervising Investigator Carter Garfield on August 3, 2023.

Findings and Recommendations

Allegation (A) Abuse of Authority: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla stopped § 87(2)(b)

Allegation (B) Abuse of Authority: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla frisked § 87(2)(b)

Allegation (C) Abuse of Authority: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla searched § 87(2)(b)

Allegation (D) Abuse of Authority: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla failed to explain to § 87(2)(b) the reason for a law enforcement activity.

Allegation (E) Abuse of Authority: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla failed to provide § 87(2)(b) with a business card.

Allegation (F) Abuse of Authority: On September 18, 2022, in front of § 87(2)(b) in the Bronx, Police Officer Juan Acostavilla seized § 87(2)(b)'s property.

Allegation (G) Untruthful Statement: On June 7, 2023, at 100 Church Street in Manhattan, Police Officer Juan Acostavilla provided a misleading official statement to the CCRB.

Allegation (H) Untruthful Statement: On June 28, 2023, at 100 Church Street in Manhattan, Police Officer Clariet Cordero Lantigua provided a misleading official statement to the CCRB.

Allegation (I) Untruthful Statement: On June 28, 2023, at 100 Church Street in Manhattan, Police Officer Michael Rosario provided a misleading official statement to the CCRB.

§ 87(2)(b) (**BR 01**) stated that he was walking southbound on the sidewalk on the east side of § 87(2)(b) between § 87(2)(b) and § 87(2)(b) when he noticed an unmarked dark-colored sedan driving slowly up the block beside him. He noticed three officers inside of the vehicle. § 87(2)(b) was wearing fitted red sweatpants with one pocket on each side. His right pocket contained a cell phone, and his left pocket contained a purple and black knife smaller than his palm that opened with a spring at the push of a button. § 87(2)(b) did not know if either object made a visible bulge on his pants. When § 87(2)(b) approached a gated parking lot near § 87(2)(b) the sedan stopped and an officer (identified by the investigation as PO Acostavilla) exited and approached him. Without saying anything, PO Acostavilla then patted down § 87(2)(b)'s pants pockets, entered the left pocket, and removed the knife. At the start of the pat down, another officer (identified by the investigation as PO Cordero Lantigua) walked over and stood close by. PO Acostavilla seized § 87(2)(b)'s knife. The officers then left without offering or providing a business card or explaining the reason for the police action. The incident lasted less than five minutes. The third officer (identified by the investigation as PO Rosario) remained inside the vehicle for the entire interaction.

§ 87(2)(b) described the first officer as a Hispanic male, late twenties/early thirties, 5'10" tall, average build, in a navy-blue uniform. He described the second officer as a Hispanic female, early 30s, 5'5" tall, slim build, long straight hair in a ponytail, in a navy-blue uniform. He described the third officer as a Black or Hispanic male in a navy-blue uniform.

The investigation obtained surveillance videos from § 87(2)(b) a building north of and across the street from the incident location. At 09:31 in the first surveillance video (**BR 05**), which begins at 1:10 a.m., § 87(2)(b) who is wearing red sweatpants, walks southbound on the sidewalk while a black Ford Taurus drives slowly up the block behind him. The license plate number is not visible, but the yellow license plate appears to be a New York State plate. It is not clear from the video if there is a bulge in § 87(2)(b)'s pocket. At 00:00 in the second surveillance video (**BR 06**), which begins at approximately 1:20 a.m. immediately following the end of the first video, the unmarked vehicle stops alongside § 87(2)(b). A male officer gets out of the vehicle from the rear driver door and approaches § 87(2)(b) who puts his hands up. The lower half of § 87(2)(b)'s body is blocked from view. At 00:12, the same officer bends down directly in front of § 87(2)(b) with his hands moving along the area below § 87(2)(b)'s waist. It is unclear from the video if the officer enters any pockets or finds a knife. At the same time, a second officer, possibly a female, exits the vehicle from the front passenger door and walks over to them, standing a few feet away. At 00:23, both officers walk back to the vehicle and § 87(2)(b) walks away. In both videos, while the two officers are interacting with § 87(2)(b) the RMP's brake lights remain on.

According to PO Acostavilla and PO Rosario's memo books, they were with PO Cordero Lantigua and assigned to vehicle #§ 87(2)(b) with PO Rosario as the vehicle operator (**BRs 07, 09**). PO Cordero Lantigua's memo book (**BR 08**) contained no relevant information.

The Automatic Vehicle Location (AVL) log for vehicle #§ 87(2)(b) (**BR 10**) shows that at 1:19:27 a.m., the vehicle turns from § 87(2)(b) onto § 87(2)(b) and is on the block where the incident occurred until 1:21:01 a.m., which corresponds exactly with the timestamps of the surveillance footage capturing this incident.

The investigation obtained MOS photos of PO Acostavilla (**BR 11**), PO Cordero Lantigua (**BR 12**), and PO Rosario (**BR 13**). PO Acostavilla is listed as a Black male, 5'§ 87(2)(b). PO Cordero Lantigua is listed as a Hispanic female, § 87(2)(b). PO Rosario is listed as a Hispanic male, § 87(2)(b). All three match § 87(2)(b)'s descriptions.

PO Acostavilla (**BR 02**), PO Cordero Lantigua (**BR 03**), and PO Rosario (**BR 04**) all testified that they did not independently recall the incident and that descriptions and photos of § 87(2)(b) the incident location, and the alleged police actions did not refresh their recollections. PO Acostavilla stated that they were assigned to vehicle #§ 87(2)(b) and described the vehicle as a black unmarked Ford Taurus. After viewing the AVL log for vehicle #§ 87(2)(b) all three officers

acknowledged that it showed their vehicle turning from § 87(2)(b) onto § 87(2)(b) at 1:19 a.m. and then remaining on the block until 1:21 a.m. After reviewing the first surveillance camera video from 09:35 to the end and the second video from the beginning to 00:14, all three officers testified that they did not recall the incident and did not recognize the officers depicted in the footage. All three officers testified that a pedestrian stop requires a memo book entry, BWC activation, and a Stop report.

PO Acostavilla (**BR 02**) testified that he did not recall if he took any enforcement action on the incident date. After viewing 09:35 to 09:51 of the first surveillance video showing the incident location, PO Acostavilla stated that the vehicle driving up the block looked like one of the vehicles his team drives. After viewing the second video from the beginning to 00:14, PO Acostavilla acknowledged that he saw two officers exiting the vehicle and approaching § 87(2)(b) but that he was unsure if he was present for the incident depicted. After the investigation reiterated that the AVL log placed his vehicle at the incident location at the incident time, PO Acostavilla stated that the video was not sufficiently clear for him to state with certainty that the vehicle was the one assigned to his team. He did not recall if he stopped, frisked, or searched § 87(2)(b) if he explained to § 87(2)(b) the reason for the police action, if he provided § 87(2)(b) with a business card, or if he seized property from § 87(2)(b).

PO Cordero Lantigua (**BR 03**) testified that while she did not remember the incident date, she doubted that she interacted with any civilians because she had no memo book entries or BWC footage from that day. After viewing 09:35 to 09:45 in the first surveillance camera video showing the incident location, PO Cordero Lantigua stated that the vehicle depicted was a black sedan, but she could not say if it looked like the black sedan her team was driving that day. After viewing the second video from the beginning to 00:20, and the AVL log, PO Cordero Lantigua stated that she could not say for certain if she was one of the officers depicted in the footage. PO Cordero Lantigua did not recall seeing PO Acostavilla stop, frisk, search, or seize property from § 87(2)(b).

PO Rosario (**BR 04**) testified that while he did not recall the day in particular, he did not stop anyone because if he had, he would either have activated his BWC, generated a memo book entry, or completed a Stop report, which he did not do. He testified that he was the driver that day but could not recall where PO Acostavilla and PO Cordero Lantigua were seated in their vehicle. After viewing 09:35 to 09:45 in the first surveillance camera video showing the incident location, PO Rosario noted that the vehicle was a black Ford sedan, the same model vehicle he usually drives. After viewing the second video from the beginning to 00:26, PO Rosario stated that he did not think the video depicted him or his partners because if they had interacted with § 87(2)(b) they would have documented it. After pointing out that the video footage depicting the police vehicle was time stamped and corresponded exactly with the location of PO Rosario's vehicle as per the AVL log, PO Rosario maintained that he could not say if the vehicle depicted on the video was the one that he was driving that night. PO Rosario testified that he has never stopped someone without generating a stop report and recording the incident on his BWC. If his partners conducted a stop, he would still generate a memo book entry. PO Rosario did not see PO Acostavilla stop, frisk, search, or seize property from § 87(2)(b).

PO Rosario testified and entered in his memo book that he was the operator on the day of the incident, and surveillance footage confirms that the RMP brake lights were engaged throughout the interaction with § 87(2)(b) suggesting that the operator did not exit the RMP during this incident. § 87(2)(g)

Per Administrative Guide 304-10 (BR 14), a misleading statement is a statement intended to misdirect the fact finder and materially alter the narrative by making repeated claims of, "I do not remember," or, "I do not know," when a reasonable person under similar circumstances would recall, or have been aware of, such material facts. The same procedure defined a material fact as a significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the

elements of some proscribed conduct. It is a fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that

Allegations G, H, and I be substantiated.

§ 87(2)(g)

It is therefore recommended that **Allegations A – F** be closed as **unable to determine**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) has been a party (**BR 20**).
- PO Acostavilla has been a member of service for four years and has been listed as a subject in one CCRB complaint and five allegations, one of which was substantiated.
 - 202200038 involved an allegation of failure to provide RTKA card, which was substantiated. The Board recommended Command Discipline A and the NYPD has yet to impose discipline. § 87(2)(g), § 87(4-b)
 - 202202744 involves an allegation of force. To date, this case is currently open.
 - 202300125 involves § 87(2)(a) force allegations, § 87(2)(a) allegations of abuse of authority (including improper use of BWC), and one allegation of discourtesy. To date, this case is currently open.
 - 202301221 involves six allegations of abuse of authority, including stop, refusal to provide shield number, refusal to provide name, frisk, failure to provide RTKA card, and failure to explain, § 87(2)(g), § 87(4-b)
 - § 87(2)(g)

- PO Cordero Lantigua has been a member of service for four years and this is the first CCRB complaint in which she is listed as a subject.
 - 202206257 involves allegations of a stop, frisk, discourtesy, § 87(2)(g), § 87(4-b) [REDACTED], failure to provide an RTKA card, and a misleading official statement. To date, this case is currently open.
 - § 87(2)(g) [REDACTED].
 - 202305105 involves allegations of a stop, failure to explain, failure to provide a RTKA card, frisk, discourtesy, offensive language, § 87(2)(g), § 87(4-b) [REDACTED]. To date, this case is currently open.
 - § 87(2)(g) [REDACTED]
- PO Rosario has been a member of service for four years and has been a subject of one CCRB complaint and two allegations, neither of which were substantiated.
 - § 87(2)(g), § 87(4-b) [REDACTED].
 - 202206257 involves a misleading official statement § 87(2)(g), § 87(4-b) [REDACTED]. To date, this case is currently open.
 - 202301221 involves an allegation § 87(2)(g) [REDACTED] for interference with recording. To date, this case is currently open.
 - § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- On August 10, 2023, a FOIL request for any Notice of Claim was filed with the Office of the Comptroller in regard to this incident and will be added to the case file upon receipt (BR 21).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

§ 87(2)(g) [REDACTED]

[REDACTED]

Squad: 16

Investigator:	<u>Carter Garfield</u>	<u>SI Garfield</u>	<u>8/25/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>08/28/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date